

judgment motion under the applicable substantive law. (Cal Rules Ct, Rule 3.1350(a)(2).) Facts that do not affect the outcome are not material. (*Knapp v. Doherty* (2004) 123 Cal.App.4th 76, 89.)

Plaintiff argues John Muir “did not control plaintiff’s functions or duties,” citing facts that suggest plaintiff had a significant amount of experience and autonomy in delivering care. (See Additional Material Fact Nos. 1-7, 16-18.) Plaintiff also points out that the contract between John Muir and Cross Country explicitly denies an employment relationship between John Muir and the professionals working on behalf of Cross Country. (Additional Material Fact No. 19.)

Typically, where an employer obtains workers from a labor service like Cross Country, the result is to find the existence of a special employment relationship. (See *Santa Cruz Poultry, supra*, 194 Cal.App.3d at 578-579.) The result is no different here in light of the standard set by Labor Code section 2775. Plaintiff’s disputes are insufficient to create a triable issue.

VI. Conclusion

Because John Muir sufficiently shifts the burden of production to plaintiff, and because plaintiff fails to present evidence of material factual disputes, the motion must be granted.

14. 9:00 AM CASE NUMBER: C25-01096
CASE NAME: STEVEN MEDAK VS. SIGURA CONSTRUCTION INC
***HEARING ON MOTION IN RE: TRIAL SETTING PREFERENCE**
FILED BY: MEDAK, STEVEN
TENTATIVE RULING:

The motion of Plaintiffs Steven Medak and Joyce Philbin for trial preference is **denied without prejudice**.

Background

On April 18, 2025, plaintiffs Steven Medak and Joyce Philbin filed their Complaint against Sigura Construction, Inc. arising from defective and incomplete rehabilitation work to their home at 2646 Marsh Drive, San Ramon, California (the “Property”), following a fire in February 2022. The Complaint asserts causes of action against Sigura for negligence, breach of contract, unfair business practices, and elder abuse based on Sigura's allegedly defective work. Plaintiffs allege that the Property remains uninhabitable.

After appearing in the case, Sigura asserted cross-claims for indemnity against several subcontractors: AM Hardwood Floors, Inc., Enriquez Plumbing, Essentra Heating and Air, Insul-Techs, Inc., J&P Home Builders, Inc., and Rodriguez Drywall. AM Hardwood Floors, Inc. and J&P Home Builders, Inc. were defaulted on September 9, 2025. Insul-Techs, Inc., Essentra Heating and Air, and Rodriguez Drywall have appeared. According to Sigura's case management conference statement, Sigura has been unable to locate or serve Enriquez Plumbing.

On February 20, 2026, Plaintiffs filed this motion for trial preference. Plaintiffs move for mandatory preference under Code of Civil Procedure (“CCP”) section 36(a) and discretionary preference under CCP section 36(e). Plaintiffs aver that Mr. Medak is over 70, that he is a co-owner of the Property and a contracting party with substantial interest in the action, and that all essential parties have been served or appeared. The motion is supported by a declaration of Mr. Medak stating that he has been

diagnosed with Isaac's Syndrome with Chronic Inflammatory Demyelinating Polyneuropathy (CIDP), an autoimmune disease that affects his nervous system. Mr. Medak declares that he is currently under medical care, takes medications daily in an attempt to suppress the condition, and is "at risk of flare-ups and hospitalizations."

On April 9, 2026, Sigura filed an opposition making two arguments. First, that Mr. Medak's declaration lacks detail because there is no information on the likelihood or severity of flare-ups, hospitalizations, or prognosis. Second, Sigura argues that even if Mr. Medak's declaration were more detailed, it would be legally insufficient because Plaintiffs must support the motion with expert declarations and medical records, and Mr. Medak lacks qualification to testify about his own condition. Sigura also argues that Mr. Medak's statements about his diagnosis are inadmissible hearsay.

On April 9, 2026, Rodriguez filed an opposition. Rodriguez reiterates Sigura's argument on the insufficiency of Plaintiff's health showing but takes the position that "the standard pursuant to CCP § 36(a) does not require competent medical evidence." (Rodriguez Opp. 4:7-8.) Rodriguez then cites *Fox v. Superior Court* (2018) 21 Cal.App.5th 529 for the proposition that Mr. Medak's declaration falls below the standard established in that case. If the motion is granted, Rodriguez asks the Court to sever Sigura's cross-complaint. Rodriguez states that it only appeared on February 11, 2026, has not yet taken depositions, needs time for expert evaluation and reports, and may bring a motion for summary judgment that cannot practically be filed by the May 1, 2026 cutoff given the 120-day trial schedule.

On April 7, 2026, Insul-Techs filed an opposition that mirrors Rodriguez's, for the most part.

On April 23, 2026, Plaintiffs filed an omnibus reply brief. Plaintiffs refute the expert-evidence and hearsay arguments by citing Evidence Code section 702 (personal knowledge lay testimony), Evidence Code section 1250 (then-existing physical condition hearsay exception), and *Fox's* specific holding that CCP section 36(a) has no requirement of a doctor's declaration and may be supported by an attorney's declaration based on information and belief. Second, Plaintiffs argue that the opposing parties' request for a detailed factual showing is tantamount to requesting the "mini-trial" that *Fox* disapproved. However, in the event the Court determines that their showing is insufficient, Plaintiffs offer to submit additional health information for the Court's in camera review.

Legal Standards

CCP section 36(a) states that a party to a civil action who is over 70 years of age may petition the court for a preference, which the court "shall grant" if the court makes both of the following findings: (1) the party has a substantial interest in the action as a whole and (2) the health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation.

The clear intent of the Legislature is to safeguard litigants who qualify under section 36(a) against the acknowledged risk that death or incapacity might deprive them of the opportunity to have their cases effectively tried and to obtain the appropriate recovery. (*Swaites v. Superior Ct.* (1989) 212 Cal.App.3d 1082, 1085.) "Mere inconvenience to the court or to other litigants is irrelevant." (*Id.*) "Failure to complete discovery or other pretrial matters does not affect the absolute substantive right to trial preference for those litigants who qualify for preference" under section 36(a). (*Id.*) "The trial court has no power to balance the differing interests of opposing litigants in applying the provision."

(*Id.*) The express legislative mandate for trial preference is a substantive public policy concern which supersedes such considerations. (*Id.* at 1085-86.) Accordingly, section 36(a) is mandatory and absolute in its application in civil cases whenever the litigants are 70 years old. (*Id.* at 1086.)

CCP section 36(e) provides: "Notwithstanding any other provision of law, the court may in its discretion grant a motion for preference that is supported by a showing that satisfies the court that the interests of justice will be served by granting this preference." "[T]he decision to grant or deny a preferential trial setting rests at all times in the sound discretion of the trial court in light of the totality of the circumstances." (*Salas v. Sears, Roebuck & Co.* (1986) 42 Cal.3d 342, 344.)

Upon the granting of a preference motion, the court "shall set" the matter for trial not more than 120 days from that date. (CCP § 36(f).)

Analysis

(1) Mandatory Preference under CCP § 36(a)

Plaintiff Steven Medak is 76 years old and will turn 77 in April 2026, which satisfies the first factor above. (Medak Decl., ¶ 2.) As a plaintiff and co-owner of the subject Property, he has a substantial interest in the litigation. These issues are not in dispute. However, trial preference for litigants over the age of 70 is not automatic. (*Kline v. Superior Court* (1991) 227 Cal. App. 3d 512, 514.) Instead, the party seeking preference must establish that his or her health is such that preference is necessary, although the party is not required to establish that death or incapacity is imminent or likely to deprive him of the ability to participate in trial. (*Fox, supra*, 21 Cal. App. 5th at 534.)

Mr. Medak submits his own declaration in support of the motion in which he states that he was diagnosed with Isaac's Syndrome with CIPD. (Medak Decl., ¶ 4.) Plaintiff further states that he is under medical care for this condition, takes medications daily in an attempt to suppress the condition, and is at risk of "flare-ups and hospitalizations." (*Id.*)

Plaintiff's motion for mandatory preference under CCP section 36(a) is denied without prejudice. The evidence supporting the motion is insufficient. Unlike *Fox v. Superior Court*, there is no showing that Mr. Medak's health is deteriorating, that his condition is progressive, or that flare-ups or hospitalizations are likely to occur with any particular frequency or severity as time goes by. As such, Plaintiff has not shown how his medical condition prejudices his interest in the litigation.

Sigura argues Plaintiff cannot establish poor health without an affidavit from a physician or medical records. That is incorrect. A motion for trial preference under CCP section 36(a) may be supported by nothing more than an attorney's declaration based upon information and belief as to a party's medical diagnosis and prognosis. (*Fox, supra*, 21 Cal. App. 5th at 534.) The motion is not denied for want of that kind of evidence. It is denied because nothing in the records indicates that Plaintiff's medical condition requires trial preference.

Plaintiff offers to provide additional information *in camera*. (Mot., p. 4, fn.1.) The Court declines that invitation. Plaintiff cites no authority supporting the use of *in camera* review in this context. If Plaintiff has additional information material to his health showing, that information should be presented in a declaration with notice to opposing parties.

(2) Discretionary Preference under CCP § 36(e)

Plaintiffs alternatively seek preference under CCP section 36(e), which permits the Court to grant preference upon a showing that the interests of justice will be served. Under this provision, the decision rests in the discretion of the Court in light of the totality of the circumstances. (Salas, supra, 42 Cal.3d at 344.) Unlike section 36(a), the analysis under section 36(e) may take into consideration the interests of opposing parties.

Trial preference under CCP section 36(e) is denied. Plaintiffs rely on Mr. Medak's age and medical condition, Ms. Philbin's approaching seventieth birthday, and the fact that the Property has been uninhabitable for over two years. The Court acknowledges the hardship of prolonged displacement. However, the underlying health showing under section 36(e) rests on the same evidence the Court has found insufficient under section 36(a). Ms. Philbin's approaching seventieth birthday adds little to the analysis. The uninhabitability of the Property is a consequence of the alleged wrongdoing for which Plaintiffs seek damages, and is better addressed through the ordinary course of litigation rather than by accelerating trial.

The Court also considers the prejudice raised by Rodriguez Drywall, Inc. and Insul-Techs with respect to Sigura's indemnity cross-claims. Rodriguez appeared in the case on February 11, 2026, and Insul-Techs on December 16, 2025. Both parties state that they have not completed discovery, that their experts require time to evaluate the Property and damages, and that a trial within 120 days would prevent them from bringing pretrial, dispositive motions. Such prejudice would be irrelevant under section 36(a). But under section 36(e), the Court must consider the totality of circumstances and this prejudice is part of that consideration.

Plaintiffs argue in their moving papers that Sigura's indemnity cross-claims can be tried separately from the main case. (MPA, p. 5:4-5.) Severance under CCP section 1048(b) might address the concerns raised by Cross-Defendants, but severance is not before the Court absent a noticed motion that gives all interested parties an opportunity to respond. The Court therefore does not consider severance as part of the section 36(e) analysis.

The interests of justice do not warrant trial preference on this record. Accordingly, the motion is denied under section 36(e), without prejudice.

Disposition

For the reasons stated, Plaintiffs' motion is **denied without prejudice**.

15. 9:00 AM CASE NUMBER: C25-01327
CASE NAME: MARIA ESTANTE VS. NOCD FLORIDA BEHAVIORAL HEALTH, P.A.
***HEARING ON MOTION IN RE: COMPEL ARBITRATION CONTINUED FROM 01.29.26 HEARING**
FILED BY:
TENTATIVE RULING:

Please see Line 16.